

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #07	CCRB Case #: 201900567	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/12/2019 11:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/26/2021	Precinct: 120		
Date/Time CV Reported Sat, 01/12/2019 11:42 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/18/2019 10:52 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Desiderato	13351	936473	120 PCT
2. POM Adrian Klusek	07981	956024	120 PCT
3. POM Bryan Dunn	03983	950355	PBSI SU
4. POM Christian Pinez	08445	957958	120 PCT
5. POM Derek Pinto	01044	957040	120 PCT
6. POM Joseph Franzese	15018	960554	120 PCT
7. POM Jeffrey Mills	15526	956934	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Yaser Salim	00000	935674	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Desiderato	Abuse: Police Officer Frank Desiderato entered § 87(2)(b) in Staten Island.	A . Closed - Pending Litigation
B . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek entered § 87(2)(b) in Staten Island.	B . Closed - Pending Litigation
C . POM Bryan Dunn	Abuse: Police Officer Bryan Dunn entered § 87(2)(b) in Staten Island.	C . Closed - Pending Litigation
D . POM Christian Pinez	Abuse: Police Officer Christian Pinez entered § 87(2)(b) in Staten Island.	D . Closed - Pending Litigation
E . POM Derek Pinto	Abuse: Police Officer Derek Pinto entered § 87(2)(b) in Staten Island.	E . Closed - Pending Litigation
F . POM Joseph Franzese	Abuse: Police Officer Joseph Franzese entered § 87(2)(b) in Staten Island.	F . Closed - Pending Litigation
G . POM Jeffrey Mills	Abuse: Police Officer Jeffrey Mills entered § 87(2)(b) in Staten Island.	G . Closed - Pending Litigation
H . POM Frank Desiderato	Abuse: Police Officer Frank Desiderato searched § 87(2)(b) in Staten Island.	H . Closed - Pending Litigation

Officer(s)	Allegation	Investigator Recommendation
I . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek searched § 87(2)(b) in Staten Island.	I . Closed - Pending Litigation
J . POM Bryan Dunn	Abuse: Police Officer Bryan Dunn searched § 87(2)(b) in Staten Island.	J . Closed - Pending Litigation
K . POM Christian Pinez	Abuse: Police Officer Christian Pinez searched § 87(2)(b) in Staten Island.	K . Closed - Pending Litigation
L . POM Derek Pinto	Abuse: Police Officer Derek Pinto searched § 87(2)(b) in Staten Island.	L . Closed - Pending Litigation
M . POM Joseph Franzese	Abuse: Police Officer Joseph Franzese searched § 87(2)(b) in Staten Island.	M . Closed - Pending Litigation
N . POM Jeffrey Mills	Abuse: Police Officer Jeffrey Mills searched § 87(2)(b) in Staten Island.	N . Closed - Pending Litigation

Case Summary

On January 12, 2019, § 87(2)(b) § 87(2)(b) called the IAB Command Center on behalf of herself and her husband § 87(2)(b) generating IAB Log # 19-1564. This complaint was forwarded to the CCRB with only § 87(2)(b)'s contact information including her resident and email addresses as well as her contact number.

On January 25, 2019, the undersigned called § 87(2)(b) but there was no answer and left a message indicating the reason for the call and callback number. On the same day she was mailed and emailed please call letters which were not returned.

On January 31, 2019, the undersigned received a voice message from § 87(2)(b) indicating that he and § 87(2)(b) received the undersigned's voice message and email, and that he was calling back to discuss since he was the only one who got arrested. He provided his callback number as § 87(2)(b). On the same day, the undersigned called § 87(2)(b) who confirmed his pedigree and incident information. § 87(2)(b) was informed of the two options the agency offered in moving forward due to his open criminal court case and § 87(2)(b) stated he wanted time to speak to § 87(2)(b) and his criminal attorney. It was agreed upon § 87(2)(b) would call back in a few days with a decision on how he wanted to move forward.

On February 7, 2019, the undersigned called § 87(2)(b) and when he was asked how he wanted to proceed, § 87(2)(b) elected to close the case pending the resolution of his criminal court case.

§ 87(2)(g) it is recommended that the case be closed as **pending litigation**.

The investigation did obtain NYPD BWC in regards to this incident but no misconduct was depicted.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date